

25STCV14964 25STCV14964

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-09-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C509%2C09%2F21%2F2026

Source SHA-256: 1d8bf6075af2865faa9a8d39fa5d1e01c77aa1bec9db137e9864308e393a817c

Case Number: 25STCV14964 Hearing Date: September 21, 2026 Dept: 509

Marquita Lambert, et al. v. Martha Bryant Village II LP

MOTION TO STRIKE

MOVING PARTY: Defendant Martha Bryant Village II LP

RESPONDING PARTYS: Plaintiffs Marquita Lambert; De'vaughn Williams, a minor by and through his Guardian ad Litem, Marquita Lambert; Gwynneshia Age; Rondell Age III; Tamia Age; Londynn Age, a minor by and through her Guardian ad Litem, Gwynneshia Age; and Johnea Wade

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a habitability action. Plaintiffs Marquita Lambert; De'vaughn Williams; Gwynneshia Age; Rondell Age III; Tamia Age; Londynn Age; and Johnea Wade (Plaintiffs) filed this complaint against defendant Martha Bryant Village II LP (Defendant) arising from disputes relating to a residential lease. Plaintiffs assert causes of action for: (1) breach of implied warranty of habitability; (2) breach of statutory warranty of habitability; (3) breach of the covenant of quiet enjoyment; (4) negligence; (5) violation Of Civil Code Section 1942.4; (6) private nuisance; (7) violation of Tenant Anti-Harassment Ordinance; and (8) violation of Unfair Competition Law (Bus. & Prof. C. §§ 17200-09).

Defendant now moves to strike various allegations in the second amended complaint (SAC). Plaintiffs opposed.

TENTATIVE RULING:

Defendant's Motion to Strike is GRANTED IN PART.

Plaintiffs are given 30 DAYS LEAVE TO AMEND.

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Motion to Strike

I. Meet and Confer

Before filing a motion to strike, the moving party "shall meet and confer...with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike..." (Code Civ. Pro. § 435.5, subd. (a).)

The Declaration of attorney Roy A. Koletsky does not reflect that the meet and confer requirement was satisfied. The Koletsky Declaration only attests to an email with no telephonic meet and confer taking place. This is insufficient to satisfy the requirements to meet either telephonically or in person as required by Code of Civil Procedure, section 435.5(a).

However, failure to comply with the meet and confer requirements alone does not defeat a motion to strike. (Code Civ. Proc. §435.5, subd. (a)(4).) In the interest of judicial economy, the Court exercises its discretion to address the motion on its merits.

II. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro. § 436.)

III. Analysis

Defendant moves to strike portions of paragraph 39 as well as the entirety of paragraphs 46, 47, and 48.

A. Paragraph 39

Paragraph 39 of the SAC states:

The harassing acts in violation of the ordinance include but are not limited to, the following:

a. Reducing or eliminating housing services required by a lease, contract, or law, including the elimination of parking if provided in the tenant's lease or contract except when necessary to comply with a court order or local or state law, or to create an accessory dwelling unit or additional housing.

b. Failing to perform, and timely complete necessary repairs and maintenance required by State, County, or local housing, health, or safety laws; or failure to follow applicable industry standards to minimize exposure to noise, dust, lead paint, asbestos, or other building materials with potentially harmful health impacts.

c. Abuse of the right of access into a rental unit as established and limited by California Civil Code Section 1954, including entering or photographing portions of a rental unit that are beyond the scope of a lawful entry or inspection.

d. Threatening a tenant, by word or gesture, with physical harm.

e. An Official Inspection Report for Record ID CO0399910 issued by the County of Los Angeles Department of Public Health on January 5, 2024.

f. A Notice and Order to Comply for Case ID 902354 issued by the City of Los Angeles Housing Department Code Enforcement Division on July 2, 2024.

g. A Complaint Investigation for Inspection No. DA4753280 issued by the City of Los Angeles Housing Department Code Enforcement Division on January 14, 2025.

h. Refusing to acknowledge or accept receipt of lawful rent payments as set forth in the lease agreement or as established by the usual practice of the parties or applicable law.

i. Inquiring as to the immigration or citizenship status of plaintiffs, or by requiring any plaintiff to make any statement, representation, or certification concerning their immigration or citizenship status.

j. Disclosing or threatening to disclose to any person or entity information regarding the immigration or citizenship status of plaintiffs, whether in retaliation for engaging in legally protected activities or to influence them to vacate or for any other reason.

k. Engaging in an activity prohibited by federal, state, or local housing anti-discrimination laws.

l. Retaliating, threatening, or interfering with plaintiffs organizing activities, including forming or participating in tenant associates and unions.

m. Interfering with plaintiffs' right to privacy or requesting information that violates a tenant's right to privacy, including, but not limited to, residency or citizenship status or social security number, except as authorized by law.

(SAC ¶39.)

Here, Defendant moves to strike subdivisions (d), (e), (f), (i), (j), and (k). (Not. of Mot.) Defendant argues that “[t]hese subcategories do nothing more than copy the ordinance’s list of prohibited acts and paste them into the complaint without any underlying factual allegations. They are conclusory allegations and their inclusion serves no purpose other than to suggest serious misconduct, including threats of violence, immigration-based harassment, and housing discrimination, that Plaintiffs never allege actually happened.” (Mot. at p. 7:4-8.)

However, paragraph 39 is not improper. Paragraph 39 directly alleges Defendant violated Civil Code, section 1942.4 in support of the fifth cause of action. Plaintiff alleges “harassing acts in violation of the ordinance include” the conduct listed in the subdivisions. While the Court recognizes that paragraph 39 appears to be a copied and pasted template, challenges to the sufficiency of the allegations or the availability of evidence is better suited for other motion types. Whether Defendant inquired “as to the immigration or citizenship status of plaintiffs,” for example, is not determinable on a motion to strike. Instead, these allegations are relevant to supporting a violation of Civil Code, section 1942.4. [FN 1]

Accordingly, Defendant’s Motion to Strike paragraph 39 is DENIED.

B. Paragraphs 46, 47 and 48

Next, Defendant seeks to strike paragraphs 46, 47, and 48 from the complaint as they request damages improper for a UCL claim. Paragraph 46, 47, and 48 states:

As a direct and proximate result of these acts and omissions, Defendant has received and continues to hold ill-gotten gains belonging to Plaintiffs. As a direct and proximate result of Defendant's unlawful business practices, Plaintiffs have suffered economic injuries including but not limited to damaged or lost personal property due to insect and vermin infestation, and mold and water damage. Defendant has profited from their unlawful, unfair, and fraudulent acts and practices by receiving full rental compensation without paying Plaintiffs and each of them for the damages each has incurred.

The adult Plaintiffs are entitled to restitution pursuant to Business & Professions Code sections 17203 and 17208 for money acquired by Defendants by means of their unfair business practices, in amounts not yet ascertained but to be ascertained at trial, including all rents unlawfully received and retained by Defendant and interest. The adult Plaintiffs are entitled to restitution for personal property lost or damaged due to insect, vermin, or mold infestation as well as water damage to items including but not limited to, furniture, clothing, bedding, appliances, and other property, in an amount to be determined at the time of trial.

Plaintiffs' success in this action will enforce important rights affecting the public interest. Plaintiffs sue on behalf of the public as well as on behalf of themselves. Plaintiffs seek and are entitled to reimbursement of unpaid compensation, restitution, declaratory relief, and any other appropriate remedy.

(SAC ¶¶46-48.)

However, a "UCL action is equitable in nature; damages cannot be recovered." (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1132, 1144.) The "[p]revailing plaintiffs are generally limited to injunctive relief and restitution." (Ibid, citing Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 179.) Here, the alleged property damage and declaratory relief is not supported by this cause of action. Because a "demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint" is an immaterial allegation, these paragraphs are appropriate to strike under Section 436(a). (Code Civ. Pro. §431.10, subd. (b)(3).)

Accordingly, Defendant's Motion to Strike paragraphs 46, 47, and 48 is GRANTED WITH 30 DAYS LEAVE TO AMEND.

IT IS SO ORDERED.

Dated: September 21, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Plaintiffs may utilize the leave provided to include more factual allegations in support of these assertions if they choose.

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the

tentative, and may issue an order which modifies the tentative ruling in whole or in part.